

Provincial Assembly Member Election Act, 2017

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Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Provincial Assembly Member Election Act, 2074".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Court" means the Constitutional Bench of the Supreme Court pursuant to Sub-section (1) of Article 137 of the Constitution.

(b) "Minority Community" means the ethnic, linguistic and religious groups as prescribed by the Government of Nepal by publishing a notification in the Nepal Gazette, remaining under clause (a) of Sub-section (1) of Article 306 of the Constitution, based on the national census immediately preceding the election.

(c) "Commission" means the Election Commission pursuant to Article 245 of the Constitution.

(d) "Candidate" means a person nominated as a candidate for membership of the Provincial Assembly pursuant to Section 18, and the word also denotes a person whose name is included in the closed list of candidates pursuant to Section 28.

(e) "Closed List of Candidates" means the closed list submitted by a political party to the Commission pursuant to Section 28 for the purpose of candidacy in an election conducted under the proportional electoral system.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act or in the order issued by the Commission pursuant to Section 76.

(g) "Political Party" means a political party registered with the Commission for the purpose of election, and the word also denotes a group of political parties participating jointly in an election with a single election symbol.

(h) "Election" means an election of members of the Provincial Assembly, and the word also denotes a by-election held in case of a vacancy in the office of a member elected under the first-past-the-post electoral system.

(i) "Election Officer" means the Chief Election Officer and Election Officer appointed by the Commission pursuant to Section 8, and the word also denotes an Assistant Election Officer.

(j) "Constituency" means the constituency determined by the Constituency Delimitation Commission pursuant to federal law for election under the first-past-the-post electoral system.

(k) "Election Representative" means an election representative appointed pursuant to Section 63.

- (l) "First-Past-the-Post Electoral System" means the electoral system pursuant to Section 4.
- (m) "Backward Region" means the backward region under each province as prescribed by the Government of Nepal by publishing a notification in the Nepal Gazette.
- (n) "Provincial Assembly" means the Provincial Assembly formed pursuant to Article 176 of the Constitution.
- (o) "Voter" means a person whose name is included in the final voter list for election pursuant to federal law.
- (p) "Ballot Paper" means the ballot paper arranged for voting in an election, and the word also denotes, where provisions are made for voting through electronic devices, the ballot paper using such electronic devices or the digital ballot paper installed in such devices.
- (q) "Ballot Box" means the ballot box arranged by the Commission for placing marked ballot papers, and the word also denotes, in case of voting through electronic devices, the electronic device that records the vote cast in such manner.
- (r) "Presiding Officer" means the Presiding Officer appointed pursuant to Section 11, and the word also denotes an Assistant Presiding Officer.
- (s) "Member" means a member of the Provincial Assembly.
- (t) "Proportional Electoral System" means the electoral system pursuant to Section 5.
- (u) "Constitution" means the Constitution of Nepal.

Chapter 2

Electoral System

3. Electoral System: The election of the Provincial Assembly shall be held by adopting the following electoral system: -

- (a) First-Past-the-Post electoral system,
- (b) Proportional electoral system.
4. First-Past-the-Post Electoral System: Under the first-past-the-post electoral system, on the basis of one constituency one seat, the candidate securing the highest number of votes shall be elected as a member of the Provincial Assembly.
5. Proportional Electoral System: Under the proportional electoral system, considering the entire area of each province as one constituency, voting shall be for the political party, and candidates representing such party shall be elected as members of the Provincial Assembly in proportion to the total number of votes secured by each party.

Notification of Election

6. Fixing Date of Election: (1) The Government of Nepal shall fix the date of election. Provided that the Government of Nepal shall consult the Commission before fixing the date of election.
- (2) In case the Provincial Assembly is dissolved pursuant to Sub-section (7) of Article 168 of the Constitution, the Provincial Head, on the recommendation of the Chief Minister, shall fix the date of election ensuring that the election is completed within six months from the date of dissolution of the Provincial Assembly.
- (3) If it is not possible to complete the election in a single phase on the date fixed pursuant to Sub-section (1) or (2), separate dates may also be fixed to complete the election in two or more phases, with the election commencing from that date.

(4) A notice of the date of election fixed pursuant to this Section shall be published in the Nepal Gazette. 7.

Notice of Election Programme: (1) After the notice of the date of election fixed pursuant to Section 6 is published, the Commission shall publish a notice of the election programme. (2) The election programme pursuant to Sub-section (1) shall include the dates, times and places for filing nomination papers for candidates, publishing the list of candidates whose nomination papers have been filed, filing complaints against candidates, scrutiny of nomination papers, publishing the list of nominated candidates, withdrawal of names by candidates, publishing the final list of candidates, providing election symbols to candidates, and voting. (3) The election programme pursuant to Sub-section (1) shall also include the programme for submitting the closed list of candidates to the Commission for the election under the proportional electoral system, making claims and objections thereon, and publishing the final closed list of candidates. (4) The election programme pursuant to this Section shall be published in the Nepal Gazette. (5) The concerned Election Officer shall publish in his/her office the notice pursuant to the election programme published by the Commission under Sub-section (1).

Chapter 4 Chief Election Officer, Election Officer, Presiding Officer and Other Employees

8. Appointment of Election Officers: (1) For performing or causing to be performed the work to be done in the election pursuant to the Constitution, this Act and prevailing federal law, the Commission shall appoint one Chief Election Officer for each district and one Election Officer for each constituency. (2) While appointing an Election Officer under Sub-section (1), the Commission shall appoint a District Judge as the Chief Election Officer in consultation with the Judicial Council, and an officer of Nepal Judicial Service of at least Grade II gazetted level as the Election Officer in consultation with the Judicial Service Commission. (3) Notwithstanding anything contained in Sub-section (1) or (2), where the date of election is fixed so that the election of members of the House of Representatives and the Provincial Assembly is held on the same date, the Chief Election Officer appointed for the election of the House of Representatives shall also be designated to act as the Chief Election Officer for the election of the Provincial Assembly, and the Election Officer appointed for the House of Representatives shall also be designated to act as the Election Officer of the concerned constituency of the Provincial Assembly. (4) The Election Officer may appoint such number of Assistant Election Officers and other employees as prescribed by the Commission. 9.

Functions, Duties and Powers of Chief Election Officer: (1) It shall be the duty of the Chief Election Officer, subject to the direction of the Commission, to coordinate and supervise election-related work of the constituencies within the district assigned to him/her and give necessary directions. (2) The Chief Election Officer shall also exercise and perform the functions, duties and powers of the Election Officer in the constituency assigned to him/her.

10. Functions, Duties and Powers of Election Officer: (1) It shall be the duty of the Election Officer, subject to the direction of the Commission and the Chief Election Officer, to conduct or cause to be conducted all works and proceedings related to holding the election in the constituency assigned to him/her in a clean, impartial and free manner in accordance with this Act. (2) Other functions, duties and powers of the Election Officer shall be as prescribed. (3) The Election Officer may delegate his/her powers to employees deployed for election work as necessary. Provided that the power to scrutinize nomination papers, to accept or reject nomination papers, and to declare the final result of the final counting shall not be delegated. (4) The Election Officer may deploy or depute employees of the Government of Nepal, Provincial Government and local level, employees of institutions owned or controlled by the Government of Nepal or Provincial Government, or run with grants from the Government of Nepal or the Provincial Government, or teachers or employees of universities or community schools, for any election-related work. Provided that while deploying employees or teachers in this manner, for employees, they shall be deployed outside the ward of their place of residence, and for teachers, they shall be deployed outside the ward of their place of work and their place of residence.

11. Appointment of Presiding Officer: (1) The Election Officer may appoint

employees of the Government of Nepal, Provincial Government and local level, employees of institutions owned or controlled by the Government of Nepal or the Provincial Government, or run with grants from the Government of Nepal or the Provincial Government, or teachers or employees of universities or community schools, as Presiding Officer or Assistant Presiding Officer.

Provided that while appointing a Presiding Officer or Assistant Presiding Officer in this manner, for employees, they shall be appointed outside the ward of their place of residence, and for teachers, they shall be appointed outside the ward of their place of work and their place of residence.

(2) The Presiding Officer and Assistant Presiding Officer appointed pursuant to Sub-section (1) shall cause all works related to holding the voting to be completed in a clean, impartial and free manner as prescribed by this Act and the rules made or orders issued under this Act.

(3) Other functions, duties and powers of the Presiding Officer and Assistant Presiding Officer shall be as prescribed. Chapter 5

Candidates and Nomination Papers

12. Qualification of Candidate: A person must fulfill the following qualifications to be a candidate in the election: -

(a) A citizen of Nepal,

(b) Whose name is included in the voter list of the rural municipality or municipality within the concerned province,

(c) Who has completed the age of twenty-five years,

(d) Who is not disqualified by any law, and

(e) Who does not hold any office of profit. Explanation: For the purpose of clause (e), "office of profit" means, other than a political office filled by election or nomination, any other office whose holder receives remuneration or financial benefit from a government fund. 13.

Disqualification of Candidate: Notwithstanding anything contained elsewhere in this Act, the following persons shall be deemed disqualified to be a candidate in the election: - (a) Who does not possess the qualification pursuant to Section 12, (b) Who is serving in the Government of Nepal, Provincial Government or local level, or in an institution owned or controlled by the Government of Nepal, Provincial Government or local level, or receiving a grant from the Government of Nepal, Provincial Government or local level, and receiving remuneration, (c) Who has been sentenced under the prevailing law relating to election and two years have not elapsed from the date of serving such sentence, (d) Who has been sentenced for an offense relating to corruption, rape, human trafficking and transportation, sale and distribution or export or import of narcotic drugs, money laundering, misuse of passport, abduction, or other criminal offense involving moral turpitude, or has been sentenced to life imprisonment or imprisonment for twenty years or more for any offense, and such judgment has become final, (e) Who has been sentenced to imprisonment for an offense relating to organized crime or sentenced to imprisonment for less than twenty years for an offense relating to culpable homicide, and six years have not elapsed from the date of serving such sentence, (f) Who has been sentenced to imprisonment for an offense relating to untouchability and discrimination, witchcraft, or polygamy, and three years have not elapsed from the date of serving such sentence, (g) Who has been sentenced to imprisonment for five years or more for an offense other than those mentioned in clauses (d)

and (e), and six years have not elapsed from the date of serving such sentence, (h) Who is on the blacklist pursuant to prevailing law, during such period, (i) Who is in imprisonment, during the period of imprisonment, (j) Who is mentally unsound. 14. Not to be a Candidate Twice: (1) In an election held under the first-past-the-post electoral system, a person may file candidacy for only one constituency at a time.

If a person becomes a candidate in more than one constituency in such manner, the Commission shall cancel his/her candidacy for all constituencies. (2) A person whose name is included in the closed list for the proportional electoral system shall not be a candidate for the first-past-the-post electoral system, and the name of a person who is a candidate for the first-past-the-post electoral system shall not be included in the closed list for the proportional electoral system. (3) If the name of the same person is included in the closed list of more than one party for the proportional electoral system, the Commission shall remove the name of such person from the closed lists of all such parties. (4) Where the date of election is fixed so that the election of the House of Representatives and the Provincial Assembly is held on the same date, if a person is a candidate in the election of both the House of Representatives and the Provincial Assembly, the Commission shall cancel his/her candidacy for both elections. 15.

Authority to Decide on Disqualification of Candidate: (1) If, after the nomination for candidacy for member has been filed but before the declaration of the election result, any person believes that a candidate is disqualified or has become disqualified, a complaint may be filed with the Commission through the concerned Election Officer along with clear evidence on the matter. (2) Upon receipt of a complaint under Sub-section (1), the Election Officer may give such candidate a period of seven days to submit an explanation in that regard. (3) After receiving the explanation under Sub-section (2), or if no explanation is received within the period, the Election Officer shall, as soon as possible, forward the complaint filed under Sub-section (1) and related documents to the Commission, mentioning the same facts. (4) After receiving the documents along with the complaint under Sub-section (3), the Commission may, if it deems necessary, inquire with the concerned candidate or call for additional evidence on the matter. (5) The Commission shall, by examining the documents along with the complaint received from the Election Officer under Sub-section (3), make a decision regarding the disqualification of the candidate within seven days from the date of receipt of the complaint. (6) The procedure to be adopted by the Commission while deciding on the disqualification of a candidate under Sub-section (5) shall be as determined by the Commission. (7) Notwithstanding anything contained elsewhere in this Section, the mere fact that the Commission has not made a decision regarding the disqualification of a candidate under this Section shall not affect the work and proceedings of such election. 16. Vacation of Office: (1) If it is determined by the Court that a person elected to the office of a member is disqualified pursuant to Section 13, such person shall vacate that office. (2) The Commission shall inform the concerned person of the vacation of office under Sub-section (1). (3) Provisions relating to filing a complaint in Court regarding the disqualification of a person elected to the office of a member shall be as prescribed. (4) A notice of vacation of office of a member under Sub-section (1) shall be published in the Nepal Gazette. 17. Calculation of Age of Candidate: For the purpose of being a candidate in the election, in calculating the age of the candidate, in the case of the first-past-the-post electoral system, the candidate must have completed the age of twenty-five years by the date of filing the nomination paper, and in the case of the proportional electoral system, by the date of submission of the closed list of candidates. 18.

Nomination of Candidates: (1) A person who is not disqualified under Section 13 may be a candidate or may be nominated as a candidate in the election as prescribed. (2) While nominating a candidate under Sub-section (1), there shall be one proposer and one seconder. Such proposer and seconder shall be persons whose names are registered in the voter list of the same constituency. (3) Where a person is

proposed as a candidate under Sub-section (2), such candidate shall sign the nomination paper indicating his/her consent. (4) In relation to a candidate set up by a political party, an official letter given by the officer pursuant to Sub-section (1) of Section 19 on behalf of such party shall be submitted along with the nomination paper. (5) A copy of such official letter given to the candidate by the officer under Sub-section (4) shall also be sent to the Election Officer. (6) If a nomination paper is filed without complying with the procedure under Sub-section (4), such candidate shall not be recognized as the candidate of that party. (7) A person may be nominated by a maximum of two nomination papers for the election. 19. Provision Relating to Officer Authorized to Provide Official Letter of Nomination: (1) A political party shall designate an office bearer of its central executive committee or a committee equivalent thereto, or the provincial committee, to provide the official letter of nomination on behalf of the party. (2) The name, surname, post and specimen signature of the office bearer under Sub-section (1) shall be certified by the office bearer of that committee designated by the central executive committee or the committee equivalent thereto of such party, and shall be made available to the Commission within the period prescribed by the Commission before the date of filing nomination papers for candidates. (3) The Commission shall forward the details including specimen signatures under Sub-section (2) to the concerned Election Officer before the date fixed for filing nomination papers. 20.

Registration of Nomination Paper: (1) The nomination paper of a candidate shall be submitted to the concerned Election Officer by the candidate himself/herself or by his/her representative, proposer or seconder. (2) The Election Officer shall examine whether the nomination paper submitted under Sub-section (1) is in proper form as per this Act, and if it is in proper form, register it and issue a receipt to the person bringing it for registration. (3) If a nomination paper is brought for registration without a proposer or seconder, with a duplicate proposer or seconder, without a deposit receipt under this Act, without the signature of the proposer, seconder or the person intending to be a candidate, or with other procedural defects, the Election Officer shall have such defects corrected and register such nomination paper. If any person does not wish to correct the procedural defects and still wants the nomination paper registered, the Election Officer shall mention the same on the nomination paper and give notice thereof to the person submitting the nomination paper. (4) Other documents to be submitted along with the nomination paper shall be as prescribed. (5) After the time for filing nomination papers expires, the Election Officer shall publish a list of candidates whose nomination papers have been registered, at the date, time and place specified in the notice of the election programme. 21. Right to Make Claims and Objections: Any candidate or his/her representative wishing to make a claim or objection regarding the qualification of any candidate whose nomination paper has been registered under Section 20 may file a complaint with the Election Officer at the date, time and place specified in the notice of the election programme. 22. Scrutiny of Nomination Papers: (1) While scrutinizing the nomination papers registered under Section 20, the candidate or his/her representative, proposer or seconder shall be present at the date, time and place specified in the notice of the election programme. (2) The Election Officer shall scrutinize the nomination papers of all candidates in the presence of the persons mentioned in Sub-section (1).

Provided that this Sub-section shall not be deemed to prevent the scrutiny and decision according to law on the matter even if any candidate, his/her proposer, seconder or representative required to be present is not present.

(3) The Election Officer may suspend the proceedings relating to the scrutiny of nomination papers to be conducted under this Section in the following circumstances, and shall inform the Commission of such suspension: -

- (a) If a riot or other abnormal situation occurs at the place during the time of scrutiny of nomination papers, or
 - (b) If a situation beyond control arises due to natural disaster.
- (4) If the proceedings relating to the scrutiny of nomination papers are suspended under Sub-section (3), the Election Officer shall, based on any direction given by the Commission, fix a time and place and scrutinize the nomination papers as soon as possible.
- (5) Other provisions relating to the scrutiny of nomination papers shall be as prescribed. 23. Grounds for Rejection of Nomination Paper: (1) A nomination paper shall be rejected in the following circumstances: -
- (a) If the candidate does not possess the qualification pursuant to the Constitution and this Act,
 - (b) If the consent of the person intending to be a candidate is not obtained, or if the signature of such person, proposer or seconder is missing, or if the signature is forged,
 - (c) If the nomination paper is not registered within the time specified pursuant to Sub-section (2) of Section 7,
 - (d) If the nomination paper is not filed as per Sections 18, 19 and 20,
 - (e) If the deposit is not made pursuant to Section 70,
 - (f) If other procedures under this Act are not complied with.
- (2) If a candidate whose name is included in the closed list for the proportional electoral system, contrary to Sub-section (2) of Section 14, becomes a candidate for the first-past-the-post electoral system, his/her nomination paper for the first-past-the-post electoral system shall be rejected. 24. List of Candidates: After completing the scrutiny of nomination papers, the Election Officer shall prepare a list of candidates according to the nomination papers found to be in proper form according to law, and publish a copy thereof in his/her office. 25.

Withdrawal of Names: (1) If any candidate for the first-past-the-post electoral system wishes to withdraw his/her name from the list of candidates, he/she may withdraw his/her name by giving written notice to the Election Officer within the time specified pursuant to Sub-section (2) of Section 7. (2) The notice of withdrawal of name under Sub-section (1) shall be filed by the candidate himself/herself or by his/her representative. (3) After the notice of withdrawal of name under Sub-section (1) is filed with the Election Officer, such notice shall not be cancelled or withdrawn. (4) If the Election Officer is satisfied about the notice filed under Sub-section (1) or (2), he/she shall remove the name of such candidate from the list of candidates. The Election Officer shall immediately publish the notice of such removal in his/her office. (5) If the office bearer designated under Sub-section (1) of Section 19 to provide the official letter of nomination on behalf of a party sends a letter to the Election Officer within the time specified under Sub-section (2) of Section 7 to withdraw the name of any candidate who filed candidacy on behalf of such party, such person shall not be retained as a candidate. 26. Final List of Candidates: (1) After the time specified for withdrawal of names under Sub-section (2) of Section 7 expires, the Election Officer shall prepare a list of the remaining candidates and immediately publish a copy in his/her office, and send a copy thereof to the Commission. (2) In the list under Sub-section (1), the names of candidates shall be written in Nepali alphabetical order, and if any candidate is nominated on behalf of a party, the name of such party shall also be mentioned in the address of the candidate. 27. Unopposed Election: If only one candidate remains for any constituency under the first-past-the-post electoral system, the Election Officer shall declare such candidate elected unopposed to that office. 28.

Preparation of Closed List of Candidates: (1) A political party wishing to participate in the election held under the proportional electoral system shall prepare a closed list of candidates representing its party. (2) While preparing the closed list of candidates under Sub-section (1), the party shall prepare the closed list so as to field candidates for at least ten percent of the total number of members to be elected under the proportional electoral system. (3) While preparing the closed list of candidates, the party shall include names ensuring that at least fifty percent of the total candidates are women. (4) While preparing the closed list of candidates, the party shall not include names of candidates exceeding the total number of members fixed for the proportional electoral system. (5) While preparing the closed list of candidates pursuant to this Section, the party shall prepare it in accordance with the inclusive principle, taking into account the geographical balance of the concerned province, ensuring representation of Dalit, indigenous nationalities (Adivasi Janajati), Khas Arya, Madhesi, Tharu, Muslim, backward region and minority community as far as possible based on population. (6) While preparing the closed list of candidates, the party shall also include persons with disabilities. (7) The party shall get the closed list of candidates prepared pursuant to this Section approved by the central executive committee or a committee equivalent thereto of the concerned party, and submit it to the Commission within the time specified under Sub-section (3) of Section 7. Upon submission of the closed list in this manner, the candidates shall be deemed to have been nominated. (8) While submitting the closed list of candidates, the party shall also submit the consent letter of the persons whose names are included in such closed list agreeing to be candidates on behalf of that party. (9) The Commission shall verify whether the closed list of candidates received from the party under Sub-section (7) has been prepared in accordance with this Act, and if not so prepared, the Commission shall notify the concerned party to correct it within seven days. (10) After being notified by the Commission to correct the closed list under Sub-section (9), the concerned party shall amend the closed list of candidates accordingly and send it to the Commission within seven days. (11) If, after the closed list of candidates is submitted under Sub-section (10) but before the completion of the election, any candidate dies, the party shall nominate another candidate by including him/her in such closed list.

While nominating a candidate in this manner, another candidate shall be nominated on the same inclusive basis on which the deceased candidate was nominated. 29. Opportunity to Make Claims and Objections on Closed List of Candidates: (1) The Commission shall examine the closed list of candidates received under Section 28 and publish it.

(2) While publishing the closed list of candidates under Sub-section (1), the Commission shall also publish a notice stating that a claim or objection may be filed within seven days regarding whether any candidate whose name is included in such list meets the qualification under the Constitution or this Act.

(3) The Commission may, if necessary, publish and disseminate the closed list published under Sub-section (1) through communication media.

(4) Any voter of the concerned province may, within the time mentioned in the notice under Sub-section (3) of Section 7, submit a petition with evidence to the Commission containing a claim or objection that any candidate whose name is included in the published closed list of candidates under Sub-section (1) does not meet the qualification under the Constitution or this Act.

(5) Upon receipt of a petition of claim or objection under Sub-section (4), the Commission shall make necessary inquiry in that regard, and if from the inquiry it does not appear that the person whose name is included in the closed list meets the qualification under the Constitution or this Act, the Commission shall, stating the same, remove the name of such candidate from such list.

(6) After the work under Sub-section (5) is completed regarding the claim or objection filed under Sub-section (5), and if no claim or objection is filed, after the period for making claims or objections expires, the Commission shall publish the final closed list of candidates.

(7) The Commission shall certify the closed list published under Sub-section (6) and send it to the concerned party. 30. Validity Period of Closed List of Candidates: (1) The closed list published under Sub-section (6) of Section 29 shall be valid for the entire term of the Provincial Assembly. Provided that if the nominating party sends a letter to remove the name of a candidate after the Provincial Assembly is formed, the Commission may remove the name of such candidate from the closed list.

(2) If the office of a member elected under the proportional electoral system becomes vacant due to death, resignation, defection or any other reason, another member shall be elected as prescribed on the recommendation of the concerned party.

While making such recommendation, the party shall recommend the name of another candidate from the closed list on the same inclusive basis on which the candidate whose office has become vacant was nominated.

(3) A person whose name is included in the closed list of candidates for the proportional electoral system of the Provincial Assembly shall not be a candidate in the election of the Federal Parliament or local level, except in the case of removal of name under the proviso to Sub-section (1). Explanation: For the purpose of this Sub-section, "Federal Parliament" means the House of Representatives formed pursuant to Article 84 of the Constitution and the National Assembly formed pursuant to Article 86, and "local level" means the rural municipality, municipality and district assembly. 31. Election Symbol: (1) The Commission shall determine the election symbols to be distributed to political parties and candidates for the election.

(2) Election symbols determined under Sub-section (1) shall be provided to political parties and candidates as prescribed.

(3) No one other than the candidate of such party or the party shall use the election symbol provided under Sub-section (2).

(4) If a candidate, after being granted an election symbol by the Commission, leaves his/her party or joins another party, the election symbol granted to him/her shall not change. If such candidate is elected and the concerned party files a complaint with evidence to the Commission, his/her membership shall be revoked.

(5) While providing election symbols to candidates for the first-past-the-post electoral system under this Section, the election symbol determined for such party under Sub-section (1) shall be provided to the candidate of the party.

If the Commission believes that any mistake or discrepancy has occurred in distributing election symbols in this manner, the Commission may change such symbol.

(6) For an independent candidate for the first-past-the-post electoral system, the Election Officer shall provide an election symbol from the group of election symbols determined by the Commission, in accordance with the manner as prescribed.

(7) While including the election symbol provided under Sub-sections (5) and (6) in the ballot paper, it shall be included in the following order: -

(a) The election symbol of the candidate of a party that has representation in the Provincial Assembly

immediately before the election, based on the number of votes secured by such party under the proportional electoral system in the election of such Provincial Assembly,

(b) In the case of a party not having representation in the Provincial Assembly under clause (a), the election symbol of the candidate of such party, based on the order of registration with the Commission for election purposes,

(c) The election symbol of an independent candidate, based on the alphabetical order of the candidate's name.

(8) Notwithstanding anything contained in Sub-section (7), in the case of the first election held after the commencement of this Act, while including the election symbol in the ballot paper, it shall be included in the following order: -

(a) The election symbol of the candidate of a party having representation in the Legislature-Parliament, based on the number of votes secured by such party under the proportional electoral system in the Constituent Assembly Member Election 2070,

(b) In the case of a party not having representation in the Legislature-Parliament, the election symbol of the candidate of such party, based on the order of registration with the Commission for election purposes,

(c) The election symbol of an independent candidate, based on the alphabetical order of the candidate's name.

(9) Notwithstanding anything contained elsewhere in this Section, while distributing election symbols for the proportional electoral system, the election symbol determined by the Commission for the concerned party shall be distributed, and while including such election symbol in the ballot paper, it shall be included in the order of clauses (a) and (b) of Sub-section (7) or clauses (a) and (b) of Sub-section (8).

(10) Where two or more parties having representation in the House of Representatives or Legislature-Parliament merge or amalgamate, for the purpose of clause (a) of Sub-section (7) or clause (a) of Sub-section (8), the total number of votes secured by such parties before such merger or amalgamation shall be deemed to be the votes secured by the currently existing party. 32.

In Case of Death of Candidate: (1) If, before or after the publication of the final list of candidates under Section 26, a candidate nominated by a party dies, and written notice thereof is received by the Election Officer from an election representative, the concerned party or any other person, and if the Election Officer is satisfied of such fact, the Election Officer shall immediately suspend the other programme relating to such election and inform the Commission thereof. Provided that the election programme shall not be suspended in case of death of an independent candidate under the first-past-the-post electoral system or a candidate whose name is included in the closed list of candidates for the proportional election. (2) The notice of suspension of the programme under Sub-section (1) shall be posted in the office of the Election Officer for the information of all other candidates. (3) Upon receipt of information under Sub-section (1), if the death occurs before the publication of the final list of candidates, the Commission shall re-determine the programme relating to the nomination of candidates and the final list of candidates without affecting the voting programme of such election, and if the death occurs after the publication of the final list of candidates, the Commission shall re-determine the date of voting and other programmes under this Chapter and send them to the Election Officer. (4) Notwithstanding anything contained in Sub-section (3), in case the election programme is suspended due to the death of a candidate, if the period required to complete the work as

mentioned in the election programme under Sub-section (2) of Section 7 exceeds fifteen days, another programme need not be published again, and the election programme shall be determined so as to complete the work relating to the nomination of candidates within the same period without obstructing the voting work. (5) In case the election programme is suspended under Sub-section (1), a candidate who has previously submitted a nomination paper need not resubmit a nomination paper, and only the party whose candidate has died may nominate another candidate. 33. Identity Card for Candidate: The Election Officer shall provide an identity card as prescribed by the Commission to a candidate under the first-past-the-post electoral system who remains in the final list pursuant to this Chapter. Chapter 6 Polling Center, Ballot Paper and Ballot Box 34.

Polling Center: (1) The Commission shall determine the required number of polling centers and sub-centers for the election. (2) If the Election Officer deems it necessary to increase or decrease polling centers or sub-centers under Sub-section (1), he/she may send a letter to the Commission with the necessity and justification for such increase or decrease, and the Commission may increase or decrease polling centers or sub-centers if it deems such matter reasonable. (3) The Election Officer may, if necessary, with prior approval of the Commission, move a polling center or sub-center to a place accessible to voters from a convenience or practical point of view. (4) Notice of the determination, increase, decrease or relocation of polling centers and sub-centers under Sub-sections (1), (2) and (3) shall be published by the Commission in the Nepal Gazette. (5) Within the area of one polling place, there may be one or more polling centers, sub-centers or polling booths as required. (6) The basis, procedure and other arrangements for determining polling centers, sub-centers or polling booths shall be as prescribed. 35. Ballot Paper: (1) The Commission shall arrange for ballot papers containing election symbols for elections (3) Upon receipt of a report pursuant to sub-section (2), the Commission, or the Election Officer if directed by the Commission, may investigate the incident pursuant to sub-section (1) in accordance with the Commission's direction, and on the basis of the report of such investigation, the Commission or the Election Officer as per the Commission's direction may annul the voting at such polling station. (4) In the polling station where voting has been annulled pursuant to sub-section (3), the Election Officer shall fix a date and time for re-polling and immediately publish a notice thereof at such polling station. 47. Closing of ballot box: After the conclusion of voting, the Presiding Officer shall close the ballot box containing the cast ballots in the manner prescribed by the Commission. 48. Handing over ballot box to Election Officer: The Presiding Officer shall securely hand over the ballot box used for voting to the Election Officer. Chapter-8 Counting of Votes and Election Results 49. Election Officer to count or cause to count votes: The Election Officer shall perform or cause to be performed the counting of votes for the election held within his/her constituency as prescribed. 50.

Notice of counting: After the voting process is completed in all polling stations designated for voting in an election for a constituency, the Election Officer shall fix the place, date, and time for counting and publish a notice thereof. 51. Counting of votes: (1) The Election Officer shall conduct the counting of votes as prescribed at the place, date, and time mentioned in the notice pursuant to section 50. (2) Candidates, election representatives, or counting representatives as prescribed may remain present at the place, date, and time for counting pursuant to sub-section (1). (3) If re-polling is required to be held at any polling station of a constituency under this Act, counting of votes from other polling stations of that constituency shall not commence until the voting process at such polling station is concluded. 52. Entry into the counting place: (1) The Election Officer shall not allow any person other than the following to enter the counting place:- (a) In respect of elections held under the First-Past-The-Post electoral system, a candidate or one election representative or counting representative of such candidate, (b) In respect of elections held under the Proportional Representation electoral system, one election representative or counting representative of a

party, (c) Staff deployed for counting work, (d) Officials or staff deployed by the Commission for monitoring or other purposes, (e) Observers authorized by the Commission, (f) Staff deployed for security, (g) Persons authorized by the Commission or the Election Officer. (2) Notwithstanding anything written in sub-section (1), the Election Officer shall not allow any person carrying any type of weapon, except security personnel deployed for the security of the counting site, or any person who has consumed intoxicating substances to enter the counting place. (3) The Election Officer may order any person obstructing the counting work to leave the counting place, and the person receiving such order shall leave the counting place. In case of non-compliance with such order, security personnel shall remove such person from that place as per the order of the Election Officer. 53.

Continuous counting: (1) Once the Election Officer commences counting, the counting work shall be carried out continuously until its completion. (2) If counting work has to be stopped midway due to circumstances beyond control, the Election Officer shall seal the ballots already counted, the counting records, the remaining ballots to be counted, and the inventory of ballot boxes remaining to be counted, in separate envelopes, bags, or sacks, and affix their own seal. Candidates, election representatives, or counting representatives may also affix their seals on such envelopes, bags, or sacks. (3) The Election Officer shall resume the counting work stopped pursuant to sub-section (2) as soon as possible. The Election Officer shall give notice of such resumption of counting to the candidates, election representatives, or counting representatives present at that place and also publish it at the counting place. Provided that the counting work shall not be deemed to be obstructed due to the absence of any candidate, candidate's representative, or party representative. 54. If ballots are damaged before counting is completed: (1) If, before the completion of counting, ballots used at any polling station or the ballot box containing ballots are unlawfully removed from the control of the Election Officer, opened, damaged, tampered with, lost, or accidentally destroyed, the Election Officer shall suspend the counting work and immediately submit a report thereof to the Commission. (2) Upon receipt of a report pursuant to sub-section (1), if the Commission deems it necessary to conduct an investigation regarding such incident, it may deploy a Commissioner or monitoring team of the Commission to conduct the investigation. (3) If the Commission, based on the report pursuant to sub-section (1) or the report of the Commissioner or monitoring team deployed for investigation pursuant to sub-section (2), determines that such ballot or ballot box was unlawfully removed from the control of the Election Officer, opened, damaged, tampered with, lost, or accidentally destroyed, and that counting cannot be resumed due to that reason, the Commission may declare all ballots of the polling stations affected by such act invalid and annul the voting. (4) In the polling station where voting has been annulled by the Commission pursuant to sub-section (3), the Election Officer shall fix a place, date, and time for re-polling and immediately publish a notice thereof at the polling station. 55.

Unauthorized occupation of counting site: (1) The following circumstances shall be deemed to constitute unauthorized occupation of the counting site:- (a) If any person, by using force, intimidation, or threats, takes control of the counting site and influences the counting process, (b) If any person prevents the Election Officer or staff deployed for counting work from performing their duties, or snatches ballots, ballot boxes, or other counting-related materials in their custody, or commits other similar acts, thereby affecting the impartial and free conduct of counting in a normal manner, or (c) If any person involved in the counting work commits an act as mentioned in clause (a) or (b), or assists in or permits such an act. (2) If the counting site is unauthorizedly occupied pursuant to sub-section (1), the Election Officer shall immediately suspend the counting work and submit a report thereof to the Commission. (3) Upon receipt of a report pursuant to sub-section (2), if the Commission deems it necessary to conduct an investigation regarding such incident, it may deploy a Commissioner or monitoring team of the Commission to conduct the investigation. (4) If the

Commission, based on the report pursuant to sub-section (2) or the report of the Commissioner or monitoring team deployed for investigation pursuant to sub-section (3), determines that such counting site was unauthorizedly occupied pursuant to sub-section (1), it shall declare all ballots of the polling stations affected by such occupation invalid and annul the voting. (5) In the polling station where voting has been annulled by the Commission pursuant to sub-section (4), the Election Officer shall fix a place, date, and time for re-polling and immediately publish a notice thereof at the polling station. 56.

Circumstances for ballot to be void: A ballot shall be void in the following circumstances:- (a) If it does not bear the signature of the respective Presiding Officer, (b) If the vote is indicated other than by thumbprint or the mark or stamp as per sub-section (3) of section 39, (c) If the mark indicating the vote is smudged or torn in an illegible manner, (d) If the vote is indicated elsewhere, not in the box containing the election symbol of the candidate or the election symbol of the party, (e) If separate votes are indicated in the boxes containing election symbols of more than one candidate or party, (f) If the vote is indicated in such a way that the mark of the vote falls within the boxes containing election symbols of more than one candidate or party, (g) If the ballot is returned to the Presiding Officer without indicating any vote, (h) If no vote is indicated on the election symbol of any candidate or party, (i) If the vote is cast using a ballot other than the ballot determined by the Commission, (j) If the ballot is found outside the ballot box, (k) If it is a forged ballot, or (l) A ballot that the Commission has prescribed as void. 57. Recounting: (1) In relation to counting of votes for an election under the First-Past-The-Post electoral system, before the counting of votes for a polling station is completed or before the counted ballots are sealed, any candidate of the respective constituency, or their election representative or counting representative; and in relation to counting of votes for an election under the Proportional Representation electoral system, any party's election representative or counting representative may immediately submit a written application with reasons to the Election Officer requesting recounting of some or all of the ballots. (2) Upon receipt of an application pursuant to sub-section (1), the Election Officer shall immediately register such application and may conduct a recount if it appears necessary to do so. (3) If a recount is not necessary pursuant to sub-section (2), the Election Officer shall make a decision to that effect and give notice of such decision to the relevant candidates, election representatives, or counting representatives present at that place before the declaration of the election result. 58.

Publication of election result under First-Past-The-Post system: (1) After the counting process is completed for all polling stations where voting took place in a constituency under the First-Past-The-Post electoral system, the Election Officer shall prepare a table of counting and publish the election result as prescribed, and shall immediately send one copy of such result table to the Commission. (2) While publishing the election result pursuant to sub-section (1), the Election Officer shall declare the candidate who received the highest number of valid votes as elected and provide such candidate with a certificate as prescribed by the Commission. (3) After the Election Officer has published the election result pursuant to sub-section (1), he/she shall prepare a report containing the details as prescribed relating to the election and submit it to the Chief Election Officer, and the Chief Election Officer shall send it to the Commission as soon as possible. 59. Decision by drawing lots in case of tie: In an election held under the First-Past-The-Post electoral system, if after the completion of counting of all ballots cast in a constituency, the number of valid votes obtained by two or more candidates is equal and the elected candidate cannot be distinguished, the Election Officer shall decide by drawing lots among the candidates who have obtained equal votes. The candidate selected by such lot shall be deemed to have obtained one additional vote. 60.

Declaration of result of proportional election: (1) The Election Officer shall count the ballots cast for the election under the Proportional Representation electoral system, prepare a statement of the total number of

valid votes obtained by each party in the format prescribed by the Commission, and immediately send it to the Commission. (2) After the Commission has received the details from all relevant constituencies of the Province pursuant to sub-section (1), the Commission shall determine the number of seats to be elected by each party based on the proportion of the total valid votes obtained by the party, applying the electoral quotient formula as mentioned in Schedule-1. (3) While distributing the seat numbers to be obtained by the parties by dividing the total valid votes obtained by the parties pursuant to sub-section (2), if the quotient for more than one party is equal in relation to any seat, the Commission shall determine by drawing lots which party shall obtain that seat. (4) After determining the number of seats to be obtained by each party pursuant to sub-sections (2) and (3), the Commission shall ascertain the number of women to be elected from the Proportional Representation electoral system, ensuring that women constitute thirty-three percent of the total number of members representing that party in the Provincial Assembly, and inform the respective party accordingly. (5) Upon receipt of information pursuant to sub-section (4), the party shall select the candidates to be elected by decision of its central executive committee or a committee equivalent thereto, and submit the list of candidates so selected to the Commission within the timeframe prescribed by the Commission. (6) When submitting the list pursuant to sub-section (5), the party shall submit the list in order of inclusion in a closed list as far as possible, ensuring representation of Dalit, Indigenous Nationalities, Khas Arya, Madhesi, Tharu, Muslim, Backward Region, Minority Community, and Persons with Disabilities, based on population and the number of seats obtained by that party. (7) Upon receipt of the list of candidates submitted by the respective party pursuant to sub-section (5), the Commission shall declare the candidates whose names are included in such list as elected. (8) The Commission shall send the names of the candidates elected pursuant to sub-section (7) to the Provincial Head, and such list shall be published in the Nepal Gazette. (9) Notwithstanding anything written elsewhere in this section, only candidates from parties that have obtained one point five percent or more of the total valid votes for the Proportional Representation electoral system shall be elected. (10) While calculating the total valid votes obtained by parties pursuant to sub-section (2), the votes obtained by a party that obtains less than one point five percent of the total valid votes shall not be counted in the total votes obtained by parties.

61. Date of election: (1) In relation to an election held under the First-Past-The-Post electoral system, the date on which the Election Officer publishes the election result pursuant to section 58 shall be deemed to be the date of election of the respective candidate.

(2) In relation to an election held under the Proportional Representation electoral system, the date on which the Commission declares the candidates whose names are on the closed list as elected pursuant to section 60 shall be deemed to be the date of election of such candidates. 62. Submitting election results: The Commission shall submit a report containing the results of elections under the First-Past-The-Post electoral system and the Proportional Representation electoral system to the Provincial Head within seven days of the declaration of the election result. Chapter-9

Representatives of Candidates and Parties

63. Election representative: (1) If a candidate under the First-Past-The-Post electoral system appoints any voter as their election representative for the election, a written notice thereof shall be given to the Election Officer.

(2) In relation to elections held under the Proportional Representation electoral system, a party may appoint its election representative as prescribed to carry out all tasks to be performed on behalf of the party.

(3) A candidate or party may at any time revoke the election representative appointed pursuant to

sub-sections (1) and (2) and appoint another election representative, and a written notice of appointing another election representative shall be immediately given to the respective Election Officer.

(4) The qualification of an election representative shall be as prescribed. 64. Duties of election representative: It shall be the duty of the election representative appointed pursuant to section 63 to perform the tasks mentioned as tasks to be performed by an election representative in this Act and the rules made under this Act. 65.

Polling representative and counting representative: (1) A candidate or election representative may appoint a polling representative for each polling station as prescribed, and a written notice of appointing such polling representative shall be given to the Presiding Officer and the Election Officer. (2) A candidate or election representative may appoint a counting representative as prescribed to remain present at the counting site, and a written notice of appointing such counting representative shall be given to the Election Officer. (3) The candidate or election representative may at any time revoke the polling representative or counting representative appointed pursuant to sub-section (1) or (2) and appoint another polling representative or counting representative. (4) When another polling representative is appointed pursuant to sub-section (3), the Presiding Officer shall be immediately informed, and when another counting representative is appointed, the Election Officer shall be immediately informed. (5) The number and qualification of polling representatives and counting representatives shall be as prescribed. 66. Duties of polling representative and counting representative: It shall be the duty of the polling representative and counting representative appointed pursuant to section 65 to perform the tasks mentioned as tasks to be performed by a polling representative and counting representative in accordance with this Act and the rules made under this Act. 67. If candidate or any representative is absent: If an election representative, polling representative, or counting representative is not appointed in accordance with this Act and the rules made under this Act, or if a candidate, their representative, or party representative is not present when required to be present, or if any of them fails to perform their duties, the voting or counting work shall not be halted solely on that ground, and such work shall be deemed to have been done in accordance with the law. Chapter-10 Miscellaneous 68. By-election: Notwithstanding anything written in section 6, if the term of the Provincial Assembly remains more than six months when the seat of a member elected under the First-Past-The-Post electoral system becomes vacant for any reason, such vacant seat of the member shall be filled through a by-election on a date fixed by the Commission. 69.

Provision regarding tender ballot: (1) If it is determined from the evidence presented that a person has already taken a ballot or voted in the name of another voter, and that the person coming to vote later is the actual voter, the Presiding Officer shall give a tender ballot to such voter. After such tender ballot is marked by the voter, such ballot shall not be placed in the ballot box but shall be placed in a separate envelope kept for that purpose. (2) The procedures for giving, keeping, and other related matters for tender ballots pursuant to sub-section (1) shall be as prescribed. (3) When counting votes under this Act, the tender ballots placed in separate envelopes pursuant to sub-section (1) shall not be counted at that time. If an election petition is filed and the court determines that such tender ballots are necessary for deciding the petition, such tender ballots may also be counted. 70. Deposit required: (1) A candidate in an election under the First-Past-The-Post electoral system shall deposit a sum of five thousand rupees at the office of the respective Election Officer, and a party submitting a closed list of candidates in an election under the Proportional Representation electoral system shall deposit a sum of twenty-five thousand rupees with the Commission. (2) Notwithstanding anything written in sub-section (1), in the case of candidates who are women, Dalits, members of minority communities, or economically disadvantaged individuals under the First-Past-The-Post

electoral system, there shall be a fifty percent reduction in the deposit amount. Explanation: For the purpose of this sub-section, "economically disadvantaged individual" means a person whose annual family income is less than fifty thousand rupees, as recommended by the relevant local level. (3) If more than one nomination paper is filed for the same candidate from a single constituency in an election under the First-Past-The-Post electoral system, a deposit for only one nomination shall suffice. (4) When depositing pursuant to sub-section (1), a candidate or party may deposit in cash or submit a receipt of cash deposit in a bank. 71. Forfeiture of deposit: (1) In an election under the First-Past-The-Post electoral system, the deposit of a candidate who obtains less than ten percent of the total valid votes cast shall be forfeited.

Provided that this shall not apply in the case of an elected candidate. (2) In an election under the Proportional Representation electoral system, if a party does not obtain at least one seat, the deposit made by such party shall be forfeited. (3) Except in circumstances where the deposit is forfeited pursuant to sub-section (1) or (2), the deposit made by other candidates, or by persons whose nomination paper was not approved or who withdrew their name, shall be refunded by the relevant person or party within three months from the date of declaration of the election result. (4) If the deposit is not refunded within the period mentioned in sub-section (3), the amount of such deposit shall be credited to the Federal Consolidated Fund. 72. Election campaign expenditure: (1) The limit of expenditure that a candidate may incur in an election under the First-Past-The-Post electoral system, and that a party may incur in an election under the Proportional Representation electoral system, shall be as prescribed by the Commission by publishing a notice in the Nepal Gazette. (2) A party, candidate, or their election representative shall maintain a record of all expenditures incurred in the election during the election period in the format prescribed by the Commission, as prescribed. Explanation: For the purpose of this sub-section, "election period" means the period from the date of registration of a candidate's nomination paper or the closed list of candidates for a proportional election, to the date of declaration of the result of such election. (3) The total expenditure incurred by any party or candidate in the election shall not exceed the limit of expenditure prescribed pursuant to sub-section (1). (4) The statement of election expenditure pursuant to sub-section (2) shall be submitted by the party, candidate, or their representative to the Commission or the office designated by the Commission within thirty-five days from the date of declaration of the election result. If the expenditure statement for the First-Past-The-Post electoral system is submitted at such office, the office receiving the expenditure statement shall forward it to the Commission. (5) The Commission may impose a fine on a party or candidate that fails to submit the statement of election campaign expenditure within the prescribed time in accordance with this section, pursuant to the federal law relating to the Election Commission. 73.

Confidentiality of election-related documents: (1) Among the documents used in an election or records if voting was conducted through electronic devices, those opened and inspected as necessary for the purpose of counting shall, after the counting work is completed, be sealed and kept in the custody of the prescribed officer. (2) The sealed ballot papers (the counterfoils), the voter list used in voting, and the sealed valid and void ballots shall only be opened and inspected by the court in the course of a petition filed under the prevailing law. No other authority or body, other than the court, shall have the right to open and inspect such sealed envelopes, bags, or sacks. (3) After the court has opened and inspected pursuant to sub-section (2), the court shall re-seal and keep such documents or records as they were. (4) The documents or records mentioned in this section shall be kept safe for up to three months from the date of the final disposal of the case if a case has been filed, and from the date of expiry of the limitation for filing a petition if no case has been filed. 74. Confidentiality not to be breached: (1) Except for persons authorized by law, no staff member deployed for election-related work, candidate, election representative, polling representative, counting representative, or any other person shall tell, write, disclose, or publish to anyone the vote indicated by a

voter on a ballot or any other matter related thereto that they have come to know. (2) Notwithstanding anything written in this Act or other prevailing laws, in any legal proceedings conducted under this Act, no witness or any person shall be asked for whom they voted or for whom someone voted in the election. 75. Oath of member: (1) A member shall take an oath in the format as per Schedule-2 before the person presiding over the Provincial Assembly or any of its committees before participating in a meeting thereof.

Provided that a member pursuant to sub-section (5) of Article 182 of the Constitution shall take the oath before the Provincial Head. (2) If any member wishes to take the oath in their mother tongue, such member shall translate the content of the oath pursuant to sub-section (1) into their mother tongue and provide a copy of such translation to the Provincial Assembly Secretariat at least three days before participating in the first meeting of the Provincial Assembly or any of its committees. (3) After a member takes the oath pursuant to this section, they shall sign the copy of the oath they have taken and present it before the person presiding over the Provincial Assembly. (4) If a member takes the oath in their mother tongue, they shall sign copies of the oath in the Nepali language used for official work and in the other Nepali mother tongue, and present them before the person presiding over the Provincial Assembly. (5) The Provincial Assembly Secretariat shall maintain records of the oaths taken by members pursuant to this section. 76. Power to issue orders and directions: (1) Subject to this Act and the rules made under this Act, the Commission may issue necessary orders, and such orders shall be published in the Nepal Gazette. (2) The Commission may give necessary directions to the staff deployed for election work for the conduct of the election. (3) It shall be the duty of the Government of Nepal, Provincial Government, Local Level, government offices and bodies, government, semi-government, and non-government organizations and bodies, parties, candidates, their representatives, persons involved in the publicity of election-related work, and staff deployed for election work, to comply with the orders and directions issued by the Commission pursuant to this section. 77. May seek assistance: (1) An Election Officer, Presiding Officer, or a monitoring team, observer, or any other officer deployed by the Commission for election work may seek the assistance of any government or security agency in the course of election work. (2) If assistance is sought pursuant to sub-section (1), it shall be the duty of all concerned to provide the necessary assistance. 78. Power to take action: If any Election Officer acts contrary to the Constitution, election laws, or directions given by the Commission, the Commission may revoke the appointment of such Election Officer and appoint another Election Officer, or refer the matter to the concerned body for departmental action. 79.

Power to make rules: The Commission may make necessary rules for the implementation of this Act. 80. Power to formulate and implement directives or procedures: The Commission may formulate and implement necessary directives or procedures, subject to this Act or the rules made under this Act. Schedule-1 (Relating to sub-section (2) of section 60) Electoral Quota Formula According to the electoral quota formula, the votes cast for each party shall be divided sequentially by a series of divisors. In this method, the electoral quotient obtained by each party is divided by multiple divisors (e.g., 1, 3, 5, 7, 9, etc.). The result obtained after such division is called the party's quotient. After the quotients are obtained, the seats are allocated to the party with the highest quotient, then to the next highest, and so on, until all seats are allocated. While allocating seats in this manner, regardless of how many votes a party has obtained, the allocation of seats to such political party shall be limited to the number of candidates listed in its closed list. Schedule-2 (Relating to sub-section (1) of section 75) Format of Oath I, (full name of the respective member) , do hereby solemnly and sincerely pledge, swearing in the name of God, that I shall remain completely loyal to the country and the people, and being fully faithful to the Constitution of Nepal, wherein the sovereignty and state authority are vested in the Nepali people, I shall perform the duties of the member of the Provincial Assembly honestly, in accordance with the prevailing law, with the good wishes of the country and the people, without fear of anyone, without

partiality, without prejudice or ill will, and maintaining the confidentiality of the office. Date:- Signature:- Name, Surname:-